Board meeting 3.6.2026

Simon
00:00
Bob is in the room. Do you want to let her? Should I wait for her to come over? You want to talk to Bob? Let's talk to Bob. Yeah, let's talk to Bob.

Nick
00:22
Hello, Bob.

Barb
00:25
Hi, how are you doing?

Nick
00:30
I would like to say the same to you but I can't see you.

Barb
00:33
Oh, well, we'll just solve that problem. Beautiful.

Simon
00:38
Oh, looking good. Thank you.

Barb
00:41
There we go.

Simon
00:42
Sorry. Where are you calling in from? Where in the well is that?

Barb
00:46
I am in Florida right now.

Simon
00:48
Oh.

Barb
00:49
Yeah, same time zone. Where are you guys at?

Simon
00:52
I'm in New York City. And I'm in Tucson.

Barb
00:55
Well, there you go. That's pretty cool.

Nick
01:00
Yeah, I moved to Tucson a few months ago after my CMU postdoc finished.

Barb
01:07
Excellent. So what are you, are you going to go on to Arizona State?

Nick
01:16
No, no. I mean, I moved here for personal reasons, but, you know, we're all remote. And this was, you know, just a lovely place to live. And, yeah, I've been a lot happier here, actually. Okay. Ken is here.

Simon
01:35
Hello, Ken.

Nick
01:36
Hey, how you doing?

Simon
01:37
Hello. I can hear you. Now I can see you. Great. Okay, and here's Neil. It's a party. I'm not happy.

Ken
01:50
I'm speaking to you from a garage. Last day at a beautiful place in Palm Desert. Pool is lovely. Hot tub is great. Palm trees are fantastic. The view is spectacular. The weather is warm. The Wi-Fi sucks. Okay. I haven't plugged into the room. Welcome, Neil. Bye.

Nick
02:09
Neil, your camera and your microphone are off.

Neil
02:15

Does that interfere with our communication? Slightly.

Simon
02:19
Hello, Neil. Hello. Hello. It's so great to have everyone here. I think we should just start with some introductions. So, Nick, should we begin the meeting officially off?

Nick
02:34
Should we do some introductions? Oh, actually, before we do that, we wanted to ask, so for all of our board meetings, we will produce board minutes and the most straightforward way of doing that is to actually record the meetings and then have AI transcribe them and turn it into meeting notes. So I wanted to ask all of you if you were fine with us recording the meeting and then we could actually just destroy the recording after we've transcribed it and I'll actually transcribe it locally on my computer. It doesn't go into the cloud so I want to keep everything as secure as possible. Is I will just record to my computer right now. Oh, it's setting a request to you.

Simon
03:19
It's recording in progress.

Nick
03:20
Are you doing it, Simon?

Simon
03:22
Yep, all done already. Okay, great. Well, let's meet each other. This is the first meeting of the five-member board. I'll just pick someone. Barb, since you're next to me on the screen, would you introduce yourself?

Barb
03:37
Oh, so I'm Barbara Oakland, I'm a distinguished professor of engineering at Oakland University. I did a course called Learning How to Learn on Coursera that turned into one of the most popular ones for some weird reason. So we've had like over 5 million. 5 million? Yeah.

Neil
03:58
Not a distortion in the image. I've seen the numbers. Well, actually, Simon told me 5 million. I didn't believe it. I didn't believe it.

Barb
04:08

Yeah, it's a fluke. But I'm happy to welcome the fluke. Back in the day before I became a professor of engineering, I was a Russian translator on Soviet trawlers on the Bering Sea and had learned Russian at the Defense Languages Institute. So I'm very cognizant of the issues related to the extremely volatile, highly partisan nature of our country and also what can happen with the suppression of free speech. And so I did a MOOC with FIRE called Speak Freely and Critically. So it's Star Trek, Luke, and others. And in this MOOC is Simon and Nick's Sway. And so I came to know of their work through that. And I'm very impressed with what they're doing. and I'm really happy to help support their efforts in any way that I can, given my human bandwidth and cognitive issues, as they say. So I'm really happy to be here.

Simon
05:26
Thank you so much for having me here. Yeah, we are. Neil, will you go next?

Neil
05:32
Yes. I was, I think it was the first class he took to the University of Melbourne as an undergraduate many years ago. And in his second lecture, he came up with a computer simulation to test what I claimed in my first lecture. And this is the only person who did that. And I said right at the time, this is an unusual person. He doesn't believe me. He doesn't believe me. He wants to make sure for himself. And that's sort of been the story ever since.

Simon
06:03
Thank you, Neil. I'll just add to that. Neil is, everyone here knows about my obsession with argument visualization or argument mapping. Neil was a pioneer in analytical reasoning pedagogy and just the best teacher. I still struggle to do what he did when I was an undergrad. Okay. Ken, please.

Ken
06:30
Sure. So I'm Ken Stern. I direct the Bard Center for the Study of Hate. But I've done a lot of things before that. I was a trial lawyer representing some American Indian movement folks and doing human rights work. Worked for 25 years at the American Jewish Committee as the point person on anti-Semitism. Writing books. But basically been focusing a lot on the idea of hate. us versus them, how we navigate that. A lot of things that resonate with what is important about free speech and the importance of protecting that, not only as a value in itself, but also as something that's, to me, a precondition for being able to fight hate. And the seductive problem of people saying, "I'm going to suppress speech," and that's the way we're going to handle it, when there's so many more things to do. And one of the things that I've done is I've testified a few times in front of the House and from the Senate. And the last couple of times I've testified in front of the Senate, I was delighted to include some references to Sway, because I

saw that as precisely the type of thing that is necessary to break divides on issues like Israel and Palestine, but other divides that are important, too. So I'm delighted to be part of this.

Simon
07:50
Thank you so much, Ken. And I'll just add, Ken was also a really instrumental early supporter of Sway and brought us a lot of attention early on that turned out to just be extraordinarily important. Okay, so I guess you guys know us, so we don't need to introduce...

Nick
08:11
I'm the same person. Slightly changed, but basically the same.

Simon
08:15
Well, okay, beautiful. So I'm going to share my screen here. here we go and we have this pretty bare bones presentation but here's the agenda we're already done with this perfect on time we're going to just look over the annual governance the first motions we need to do are re-electing the officers

Nick
08:37
actually before that why don't we just talk about the mission statement of disagree wisely and what we're doing like officially.

Simon
08:50
Let me show everyone. Let me put the mission statement on the screen so we can actually write.

Nick
08:56
Do you want to actually pull up the webpage? Yeah, I will right now. Here we go. Oh, do you want to go actually to the onboarding guide one? Okay, so yeah, so we're going to fill you in on this, but after the meeting, we'll send you all materials. We made an onboarding guide as well as a whole reference, a much more comprehensive It's a reference page. And this, it'll be a website, but we'll give you a password to log in. So just so that you can see it. But it has all information about the organization. And anyway, we'll go through some of it now. But I thought it would be useful just for us to begin with the mission statement and our operations.

Simon
09:40
Here it is. We aim to empower millions of learners to cultivate essential intellectual virtues. humility, cognitive empathy, critical thinking, and the ability to engage productively across

differences driven by rigorous empirical research, we deploy and study educational tools that foster free inquiry and intelligent discussion. Well, we've reached 10,000 students so far, so we're making steady progress on our mission. So let me get back to here. Nick, I have my notes that I've now somehow removed. Have I done? I have my notes, okay. Yeah.

Nick
10:27
Great. Oh, and by the way, we've blocked an hour for the meeting, but we're not entirely sure how long it'll take or how much time, additional time you all have. We'll plan for a meeting and if people are able to keep talking, we can continue. And if not, and there's still important things to discuss on this first full board meeting, we'll schedule another one to talk about the additional issues.

Simon
10:53
Can everyone read this? Is this big enough now? Yeah. Okay, beautiful. Okay, so yeah, we've got some stuff, some news to tell everyone about, maybe structuring our 5.1c3 formation, our ongoing dispute with Carnegie Mellon, And then we'll sort of update you on our finances and where we are in terms of our impact and our growth. Okay, so the very first order of business here is we need to re-elect the current officers. So this is a pretty simple process. I think we just go yay or nay.

Nick
11:26
Oh, just to clarify, we're meant to have an annual, so definitely always an annual board meeting where we re-elect officers. And we'll also have quarterly meetings as well and any other special meetings that we need to adjourn as well. But the annual meeting, which is happening, normally supposed to happen in January, but took us a little while to get things set up. So it's a little delayed this year. But yeah, so this is part of the annual re-election.

Simon
11:57
So we will do this again in 11 months or a little under 10 months. So let's start with that. I can't vote on my own position. By the way, I don't think we are voting on our roles. No, no. Yeah, this is for when we are paid, since I'm not currently paid.

Nick
12:16
Oh, just to clarify, since you're seeing it on the screen, Simon is the president of Disagree Wisely. I'm the secretary and treasurer, and the rest of you are directors. So no special title, but director.

Simon
12:30

Yes. Okay, so I can't vote on my own re-election, so I'm going to turn the sound off and I'll let Nick take care of this, and then I'll be back and I'll do a thing big.

Nick
12:44
Okay, let's vote to re-elect Simon as president. I will begin by saying yay.

Neil
12:54
Yay?

Nick
12:55
Neil has said yay. I'm still the president, okay. I am. Okay, so Nick has said yay, Neil has said yay, Ken, Barb, and Ken. Okay, so we have all the yays for Simon.

Neil
13:13
Okay, and I second all of you. You get better than North Korea. 99.97% of the votes. I don't get about 100%. That is good.

Nick
13:22
Well, the confidence interval is pretty wide.

Simon
13:25
Yeah. Okay, so let's vote on Nick's role as the secretary and treasurer. I vote yay to re-elect him. Neil, how do you vote? Bob? Yay. And Ken? Yay. Wonderful. And to re-elect Neil as a director, I vote yay.

Simon
13:47
I vote yay.

Simon
13:49
Yay. And Ken? Ken, how do you vote?

Simon
13:57
Yay.

Simon
13:57
Wonderful. Okay. Thank you very much. The board remains stable. This is great news. So we've

just got a couple of standard things that we legally need to talk about, but we will send you an email just shortly after this meeting where you can go and review the text itself. It's all very standard sort of text. And I will say Nick and I haven't totally improvised this. We've they're not our attorneys but they're consultants who've helped to establish literally thousands of 501c3s and they are very conservative in terms of the sorts of things they do so everything we've got here is um we really uh uh down what was the word um to the letter or something the letter of

Nick
14:45
the law it really is um quite tight so we'll share all of that with you um and by the way um so i get 501c3 status and they have a 100% success rate in the last 30 years. So we're confident.

Simon
15:03
Which I came to think of as actually not a good thing. That struck me. They don't take risks. That's what I learned about them. Okay, so the bylaws are, again, pretty standard and have been informed very strongly by our advisors at the foundation group. Those will also be circulated and then we'll just need you to confirm a receipt and your intention to abide by them. Since Neil has already done that, we will only send that to Ken and Bob. Okay, so this is the big news. We've originally set out to make Disagree Wisely a kind of one-stop shop for everything we do with Swain, including the development of intellectual property, the development of coding, as well as our work in education, our outreach, dissemination, as well as our research. So it turned out, after one year of trying, that that is very, very, very hard to do. And we came to the conclusion with our advisors at the foundation group that what we ought to do is split into a pretty clean separation, a for-profit public benefit company which will be responsible for the development of intellectual property, and that alone, and then disagree wisely, which will be responsible for all things which do not involve the creation of intellectual property, including our research, our work with hundreds of instructors now, outreach, dissemination, and all of the sort of standard things that happen within a nonprofit of this kind. So our technical classification is as a research nonprofit, but it's understood that we are heavily involved in education, that we will run programs in education. And yeah, so this is a pretty common sort of setup. It did solve a whole lot of problems. It turns out establishing a for-profit company is a lot easier than a non-profit. In fact, in Delaware, for an extra 50 bucks, they'll do it in one hour instead of one week. So that was the real news to me. You have standard oil. So this will not have any limitations on what Disagree Wisely can do. Nick and I will make a free license in perpetuity to Disagree Wisely for all of its research and educational missions. But the actual intellectual property will not belong to the non-profit. That will preserve the ability for us to profit from the intellectual property, the principal benefit there. So this is now, we're just sort of finalizing the 501c3 application. We are already incorporated in the state of Florida. And we hope that our application will be filed with the IRS in the coming weeks.

Nick
18:10
So Foundation Group told us they have everything they need from us now after many, many revisions over a number of months. So many revisions. They're finally happy with everything. And now their people are producing the official application.

Simon
18:25
Yes. Now, this point actually needs to be revised. We will not be getting expedited IRS review. So one other bit of news. We were really fortunate as part of a consortium involving one other nonprofit that actually both Neil and I have had some involvement with Thinker Analytics, who do mass free learning and argument visualization programming. We, in concert with Thinker Analytics and our two university partners, Notre Dame and North Carolina State, were the recipients of a $4 million Department of Education grant. I can't recall what FIPC stands for. I don't remember. improving post-secondary education, I guess, PSE. So that includes $800,000 in funding for us. Primarily, those funds will be devoted to infrastructure and training and deploying support staff to support an expected 50,000 users across 125 campuses with hundreds of faculty involved. The total study will involve 100,000 students, at least 50,000 of whom will be using Sway.

Nick
19:36
That's over a three, four year period.

Neil
19:40
Yes. Could I ask a question? The 800,000 cannot be used then for programming. Is that right? Because of the distinction between DW and Sway IP.

Nick
19:49
Exactly. That's right. Yeah, by programming you mean coding. Yeah, educational programs.

Neil
19:58
Yeah. Improving the software.

Nick
20:00
That's right.

Neil
20:02
Exactly.

Nick
20:02
Something else I just wanted to add is, yes, as I mentioned, post-secondary education. We've also recently started to branch out into K-12, specifically middle school and high school students for Sway. Our focus still has been higher education, and we now have close to 10,000 students who have used Sway in higher education. But now we've actually had a few hundred students using Sway in high school. And that's something that we're starting to expand into. And we have a research partner at Yale. His name is Mike Strambler. He's an expert in social emotional learning. And so he's going to be a key partner of ours for the, what we call the Sway Classroom Initiative. That's specifically the K-12 version of Sway.

Neil
20:54
Can I go back? I'm sorry. I've got to go back to the purpose of the organization. and remember it says something about education is education in any way limited to educational institution no generally doing anything with public if I want to have a discussion with my wife and I think SWE would help with overcoming an issue or something that would be a legitimate SWE usage and supported by it

Nick
21:29
yes sways teaching you the skill of constructive disagreement.

Neil
21:35
What about constructive agreement? And that.

Simon
21:38
And that. Okay, there's one other thing. Oh, yes. Bob, please.

Barb
21:45
I'm just trying to make sure I've got, you know, very mentoring questions. So there's two different organizations. There's the not-for-profit. There's the for-profit. And we are on the not-for-profit team. and Sway will be on the for-profit team.

Simon
22:04
Is that right? Well, the production of the intellectual property will be on the not-for-profit, but the Sway program will be used extensively through a royalty-free license to the non-profit. So the effect on Sway's, on Disagree Wisely's programming is to focus it entirely on the educational and research mission, While the for-profit public benefit company will be focused on developing, improving the software, developing new features and that kind of thing. And

whatever the public benefit company creates, we license to the nonprofit for free. Okay. Okay. That helps.

Nick
22:47
Just to clarify, the for-profit public benefit corporation doesn't yet exist. But we're on that.

Simon
22:57
although with one hour and 50 bucks a dollar you can change that so some really exciting stuff that I won't go into detail but Sway Classroom we've been working now for months with a wonderful non-profit in the civil discourse space in the United States called the Bill of Rights Institute they reach hundreds of thousands of students through their programming and are really excited about working with us on Sway Classroom we're approaching the Carnegie Foundation and have had some positive discussions with them so far about getting funding to give us a few year runway to pilot Sway Classroom and then to develop it that initiative would be led like Nick said by Mike Strambler he is also my colleague as a faculty research fellow at the Heterodox Academy someday I hope we will invite Mike to a meeting and he will be able to present some really amazing, inspiring stuff. But yeah, I'm really very excited about that. This is...

Ken
24:01
Before you go on, I'll ask you a couple questions about the IRS process. Is there any concern from the people that you've been talking with either about the Trump administration and the gutting of the IRS and so forth, the amount of time and also the scrutiny, because there's some politics, as you know, involved with all this. And secondly, are you sure that that grant is secure? Because I know people that have gotten government grants that disappeared with this new administration.

Simon
24:32
Yes. So on the first question, I've heard similar things. We haven't been told or warned by anyone at Foundation Group. Nick, I don't think we've heard Ren hasn't warned us of anything.

Nick
24:46
No, no. I mean, I think she is our Foundation Group liaison. I think she did say that things might become unpredictable moving forward, but she hasn't indicated that recently to us. That was actually more closer to the beginning of the new Trump administration.

Simon
25:05
And on the FIPSI side of things, one benefit of this is that the FIPSI initiative is an initiative of

the Trump administration. That does not mean that the Trump administration will not destroy it, of course. It somewhat reduces the probability, though. So they put, I think, $130 million or $40 million into two priorities. One was AI and the other was civil discourse. And so those funds, I know, will be dispersed on a yearly basis to Notre Dame, the primary lead. And Notre Dame is currently, I think, in receipt of the first year of funding. So that much money is at least secured. Although the first year is kind of a ramp-up year, and we only will receive around $60,000, although that will contribute to our salaries. In the second year, we'll have more meaningful sums to begin onboarding more staff. Now, yeah, I would ordinarily be much more confident that the funds will be available in the second year than I am, but we're planning on that assumption. Great, thanks.

Neil
26:14
What would happen if the funds are full? Would it be a catastrophe here?

Simon
26:21
Right now, as I'll get to soon, we are operating on a pretty thin margin without a lot of money in the bank in some respects. So it would certainly cause complications for our plans. We have a lot of irons in the fire with funding. And, you know, I'm optimistic that we'll have other grants coming through in hopefully the first half of this year.

Nick
26:47
And I'll talk more about the financial stuff in a little bit. We have a slide for that coming up.

Simon
26:53
Yeah. Okay, unless there were more questions here, I'm going to move on.

Barb
26:59
So, no, I'm not seeing the presentation now.

Simon
27:03
Oh, let me stop it and start it again and see if that puts it onto the top of your screen.

Barb
27:08
There we go.

Simon
27:09
Good.

Neil
27:10
And one last question, what's the difference between a for-profit corporation and a for-profit public benefit corporation and a for-profit corporation?

Simon
27:23
It has some constraints on the structure of the organization. So the for-profit PPC will also have a board of directors, and there are constraints on how that board must be constituted that are in some respects familiar from non-profits. The big difference is that you can own and then sell intellectual property. So, for example, if one of the LMSs or one of the AI companies decided they wanted us to come and build sway within their business, that would be something that we would be able to do with a clean title of ownership through a public benefit company. But we couldn't do that through a nonprofit because of the laws concerning private enurement. Is that their word that they use, Nick? I think it's in your word. So, you know, we get some benefits in terms of tax exemptions, although to my amazement, the tax exemptions, this is probably not news to others, but just a sign of my naivety going into all of this, we still pay a huge amount in tax. Like our payroll tax is substantial. It was kind of amazing to me that the benefits of being a non-profit are quite slim by comparison.

Nick
28:42
Also, a public benefit corporation is supposed to benefit the public, whereas any random for-profit does not necessarily have to.

Simon
28:56
The AI company Anthropic, I believe they're structured as a public benefit corp. So it's pretty familiar, even in businesses that do make money become self-sustaining which is our work for our work you know right now we've been pretty fortunate with grant funding but a huge chunk of our time goes into just trying to raise funds and the signals we've gotten from students and instructors all over the country indeed around the world are that we're really delivering some meaningful value and so we're taking a bet that it will be possible to create a self-sustaining business that will allow us to develop something much, much cooler than we could ever do in the context of being a non-profit. And where less of our time will have to be sunk into, you know, just traveling around begging people for money. So that's the long-term hope to create a self-sustaining business that can keep us employed and fund the development of Sway and also ultimately could also fund research. Of course, there's nothing stopping a for-profit company donating money to a non-profit.

Ken
30:08
And one of the things I want to talk to your advisors about, when I ran a small foundation, also

concerned about the amount of taxes taken out for salary and so forth, there are ways around that. I had the foundation pay 100% of my health insurance. That was my taxes. I covered my phone. There are other legitimate expenses. some guidelines compared to how much assets you have that restrict things, but there are some ways of reducing what's going to take out of your product.

Simon
30:40
Thanks, Ken. That's really good to hear. Is that interesting to you? That is interesting. That's great. We'll definitely look into that. I'm surprised our advisors didn't mention such things.

Nick
30:54
Yeah, we'll ask her.

Simon
30:57
Okay, so right now we are in this sort of weird moment of transition where we have had two agreements, one with Heterodox Academy and the Arthur Bynum Davis Foundation and another with the Learning Agency, and I'll talk about each separately, that have channeled funds for development through Disagree Wiser. So I'll start with Heterodox Academy. Technically, Heterodox Academy doesn't want us to call...

Nick
31:25
So just more background. Last year, Simon and I applied for a very large grant through the Arthur, Byning, Gavis Foundation of about $300,000 to further develop and expand access to sway and also do research. And we won this grant. and there's a substantial portion of it though that actually does involve develop further development of sway especially as we've been getting more and more students you know they're so barb we always think about something you told us in one of our first meetings about how there's a big difference in the the pain points when you have a thousand students versus ten thousand hundred thousand a million students so like these edge cases keep becoming more and more prevalent of course, as you have more and more users. And that's exactly what's happened with us. And so most of the development that we've done has been to accommodate issues that arise more and more frequently when you have more and more students and more and more instructors. But that's involved, you know, for the development of Sway and, of course, you know, getting rid of bugs, but also making things as easy as possible for students and instructors. And also, of course, just making sure our infrastructure can support X thousand number of students and eventually tens of thousands and so forth. But yeah, a substantial part of this award was for development. Also, most of it though was for research and deployment and also part of our salaries. But okay, so now Simon, do you want to talk about HXA's role in this in this grant?

Simon
33:04
Yeah, yeah. So when we were applying to the Binding Davis Foundation, By the way, just a word about Arthur Binding Davis. They are a kind of smaller cousin of the Templeton Foundation, which you might have heard of. Templeton has multiple branches, the Templeton World Charity, Templeton Religion Trust, and the third one I think is just called the Templeton Foundation. They fund a lot of work that is connected with religion and metaphysics. They funded work on free will, on philosophy of mind. Cosmology. Yeah, epistemology.

Nick
33:40
Cosmology.

Simon
33:41
Oh, cosmology. Right, right, right. And epistemology as well, I think. John Hawthorne had something going with that. But anyhow.

Neil
33:47
The University of Melbourne course, Garden of Natural Sciences. Oh, yeah. I didn't know that. I don't know if you took that course. I did take that.

Simon
33:57
I did.

Neil
33:58
With Professor Hutchins. The name. The Reverend Dr. Stephen A.

Simon
34:02
Oh, right, right, sorry. Yes. So that is, they have a very large charity, and a number of people who work at Templeton have now moved into this smaller group called the Arthur Byron Davis Foundations. They're still broadly conservative, broadly religious, but quite focused on civil discourse. So they funded groups, totally secular groups, of course, like us, but also Bridge USA, actually the largest student-led organization in the United States, has been heavily funded by them, Unify America, and a variety of other bridging organizations. I believe we received the largest grant that they've made, but it might only be the largest in recent memory. So they've been extraordinary supporters of us. We were at CMU. They approached us. We got a call from one of the grant managers asking to set up a call because they were so interested in what we were doing. you know they were encouraging us to apply for the big grant and at the end of the call well of course we're going to apply for the big grant but you know at HM we

really do some cash right now and it turns out that gambit paid off they sent us $36,000 or $37,500 to Carnegie Mellon and that was one of our first sort of enabling grants and then indeed they came through a while later with this large grant, which turned out to be $340,000. But this was coinciding with our departure from Carnegie Mellon University. So it did not make sense to have that money go through Carnegie Mellon, given that we would be leaving. So Heterodox Academy...

Nick
35:50
And we, as now, we still hadn't achieved 501c3 status. So because of that, they wouldn't transfer the funds to us, even though we were. incorporate as a non-profit in Florida, we weren't yet an official 501c3.

Simon
36:08
In fact, our reason for selecting Florida as the state of incorporation is that that is their state of incorporation and where they operate, which made it quite easy for them. Turns out their trustees decided not to do that. And so luckily for us, the Heterodox Academy offered to be our fiscal sponsor. So they've received all of the funds from AVDF that were awarded. So the award is technically and publicly to HXA, not to disagree wisely. And we request reimbursements from Heterodox Academy. That includes reimbursements for development costs. Like we've got here, the net cost to disagree wisely is zero, but it is currently the case... the net income. Yes. Nick? Oh, oh, oh, net cost. You know this inside. Oh, I mean, I mean,

Nick
36:59
the net cost and the net income is zero. Yeah. I just wanted to clarify. Do you want to finish

Simon
37:05
this bit off? Because you just know this inside. Oh, yeah. So, so here's, so, um, um, right. Uh,

Nick
37:12
so we proposed to HXA that, um, our agreement with them. So we have a services agreement between and disagree wisely in HXA, spelling out the scope of the ABDF grant, the different buckets, the different funds. And we proposed to the executive director of HXA just to make an amendment to the service agreement, specifically that the development costs would not go through disagree wisely, but instead through the PBC that we intend to make. Unfortunately, HXA's executive director informed us, I mean this was actually just yesterday, just informed us that that's not going to be feasible for a variety of administrative issues on their end. So unfortunately what we're going to have to do is to still, for the time being, put some development costs through Disagree Wisely over the next few months, even though that's

something that's not officially part of the purpose of Disagree Wisely. And what's probably going to have to happen down the line, and we're going to have to talk to the foundation group about this and update them about this. Because again, we just got this update yesterday. We were hopeful that HXA would be open to amending the service agreement, but we'll have to talk to them about how to deal with this. What might have to happen is eventually these development costs will have to be paid back in some way.

Simon
38:57
Although, as Nick mentioned a moment ago, the net cost and the net advantage to disagree wisely is zero because everything gets reimbursed through Heterodox Academy. So it isn't exactly clear to us how that will be resolved, But the practical outcome is that Disagree Wisely will continue invoicing heterodox academy for some development-related costs through May or June. At that point, the development budget is expected to be all used up. So Disagree Wisely is fully reimbursed for these costs, and the net financial impact on it is zero. So we do expect that it will be possible to compliantly resolve this. It's pretty obvious, disagree wisely is not being, there's no issue of private environment, but it is at the moment in a somewhat complicated state. And we did want to just be forthright about that since you are the board of directors and you need to know these things. Can I paraphrase? This is slightly complicated.

Neil
39:57
Yes, it is. The problem is that you are doing things because of this residual agreement, which is inconsistent with what is in the mission of the discrete wisely. Once the other institution, the sway corporation, comes into existence, or independently, I guess, of sway coming into existence, you're doing something which is inconsistent. However, it's a benign inconsistency or something, a residual inconsistency. And you hope that the legal power to be just won't care.

Simon
40:36
Yeah, they won't care. And also that the range of mitigating circumstances and our efforts to mitigate the situation will be very clear to them. There's obviously a strong paper trail of us talking to our fiscal sponsor and attempting to change these arrangements now. So we don't think that they're going to look at us as trying to, you know, rip anyone off. What we've been able to find out is that these are things which often can be resolved later down the track.

Nick
41:08
And especially when there are some minor compliance issues or instances of incompliance early on in the nonprofit, our understanding is that that's not as severe as it happening later. I mean, like once you've achieved 513 status. So we are still a very young nonprofit. And our understanding is that having some compliance issues early on is not a huge deal, but this is

something that we're working through with the foundation group.

Neil
41:41
And how much to alleviate that it's a carrying over of an obligation, which you had before, as opposed to something that you just got now.

Simon
41:50
Exactly.

Ken
41:51
What I would suggest, I mean, just to be extra cautious about, I don't know the people that you're talking about in the foundation group, but there needs to be somebody who's going to give you a legal opinion. to pay for this because you want to rely on that as opposed to expectations. Down the road, you're also going to have to file a 990. You have to send something on it. So you're going to have to show them what this income stream is and why all those things. And not to sound overly concerned, but given what I've seen about this administration, knowing despite the fact that what you're doing is trying to get people to have discussions across you know bridges there are going to be people that are hunting some of the examples they can use there that people are going to say you know zionism is racism or other things like that and someone's going to pick that out there and there's maybe somebody at the irs is going to say wait a minute let's take a look at this so i would be extra cautious about how you do that and get some, you know, when I was running that small foundation, I had somebody who was, you know, did small non-profit legal advice. And you have a specific question here, but I think it would be worth the time and the effort to get that answered and to think of all the scenarios rather than just hope. Absolutely.

Simon
43:10
That's exactly what we're intending to do. We actually have a need for some competent legal counsel in a number of places and that's it as well. Whether We'll have a single lawyer who helps with all of our issues or someone who helps us separately. On this, I'm not sure right now, but if you do have contacts who you think are well-versed in this area and might be open to an initial consultation where we can sort of explain our current situation, I definitely welcome any introductions that you could make. And that goes for everyone.

Ken
43:44
People that we use, I mean, I had some issues with good on some things and bad on others. And you're in Florida, so you probably want somebody there. So I don't know if you can ask the people that you're connecting with about how you set up the paperwork. They have a

recommendation. Maybe people from heterodoxy will be able to tell you, too. If you can't find it, if you strike out, circle back to me and I'll see what I can find out. But I don't have a specific name for you.

Simon
44:12
You know who I think would be a great person to reach out to is our primary contact at the Arthur Bynum Davis Foundations in Florida. They surely have their own legal counsel. Yes, so the story is actually even more complicated, I'm afraid. So Nick and I were really lucky to be chosen as one of six winners in the Learning Agency's Global Tools Competition. It's been called the EdTech version of the XPRIZE. There are 1,000 entries worldwide. So this was a huge sort of medal of honor for us, but it also came with $150,000 in prize money. And what we had proposed to build with that money, we call chat maps. It is a real-time automated argument visualization. So as two students are having a debate about any given topic, we want the AI to work collaboratively with them to build out a visual tree showing the structure of that argument. I think it's going to be an unbelievable feature that will attract a lot of attention because I think it's going to be an extraordinary experience to use it. Again, we run into the exact same problem. That award was made to disagree wisely. At the time, we could have applied as individuals or as a for-profit. the learning agency is not limited to making donations to non-profits. However, we obviously didn't know what was going to happen, and so we did apply as a non-profit. When we recently realized our compliance issues, we paused spending on the learning agency tools competition prize money, so that has not been used for development past the initial $25,000. And we recently, in fact just yesterday, heard from one of our main contacts there that unfortunately they will not be able to reallocate those funds. We were hoping that we would be able to return the $125,000 to the learning agency and then have them make it as a donation to our PBC. Unfortunately for some reason the funds that we received perhaps come from a bucket that was set aside for non-profits. I have to say the justification rang, it sounded to me a little bit like perhaps an excuse and they just didn't want to deal with this. That's okay. We definitely have legitimate compliant uses for that $125,000, including salary, research, and infrastructure. And we need those funds. So there's nothing, nothing will go to waste, but it does mean that we have substantially less money to continue development.

Nick
47:05
And when Simon says we, we mean the Sway for-profit. Yeah, currently us as individuals and then eventually the for-profit to continue developing Sway. But most of what Simon and I do, and we also have a director of communications now, most of what we do is not IP development. Most of it is, there's just a ton of work involved in reaching out to instructors and coordinating events talking with research partners and actually doing research. So giving talks, of course. Endless. So most of what we actually do is not IP generation. I'm happy when I get a chance to

work on some IP stuff. But we will definitely have legitimate use of this money. And as far as the development of chat maps, this real-time argument visualization in this way, That'll have to be delayed for a bit. But Simon and I definitely plan to build that out. In fact, that's the thing we're most excited to build in Sway. But it'll have to be delayed for a little while.

Simon
48:20
Yeah.

Neil
48:21
I'm a little confused. So you've got $150,000 for putting in an application. And you said, I'm going to do this. Now, in that application, did you say you're going to develop the software? And if you're not going to develop that software, why are you entitled to the entire $150,000?

Simon
48:39
That's an excellent question, and I have the same one question for their representatives. So what they said is they know that when they make donations, they are making donations to people who are learning. And it does frequently happen that they will restructure an award. And I received a notice from them this morning that they are maximally flexible on how those funds are used. So we'll be meeting with them again to discuss that. But there's every indication that they are quite happy to restructure our award, not around the creation of chat maps, because I think they basically just want to see Sway succeed. Like Nick said to me a while ago, I think we probably would have won that competition, even if we hadn't proposed chat maps, if we just proposed scaling Sway.

Nick
49:31
Oh, yeah, just to elaborate that, we met with this person several days ago, and we told her that, I mean, so one reason that we haven't built out chat maps yet has been this compliance issue, but another is we've just been completely swamped scaling Sway. So when we applied, we had barely 2,000 students in total have a use way. Now we're up to 10,000. And we had maybe 30-something instructors. Now we have, I don't know, 130-something around there. And we've just been totally swamped taking care of these instructors and students. And that's been a big reason why we haven't been able to do chat maps. Even before we realized this compliance issue, we were like, well, we have to pump the brakes we have to make sure that Sway can be adequately deployed to the students and instructors. And so we explained this to the learning agency person we talked to, and she was very understanding about this. And as Simon said, told us it often happens that when an ed tech organization starts massively scaling, the priorities change and sometimes in an unforeseen way. And I mean, it's a good problem to have, the fact that we've gotten so big. But sometimes what that means is that the original plan

of funds has to be redirected in some way.

Neil
51:09
Can I make, keeping in mind, Ken's concern about what may be happening with the Trump administration down the line of somebody if you guys get attention about the Israeli genocide or something like that would it and it sounds take it unsympathetically so you said I got $150,000 between chat mats, I got the money now I did something that has nothing to do with chat mats can some of the money maybe half of it even within us be spent within uh disagree wisely on not on the software as chat maps but there are lots of non-programming issues that can uh arise about chat maps for example how do you just conceptual epistemic what's how do you measure whether this is any good and do people like the last one maybe there's not a particularly good one uh are there can uh uh good given your remit it doesn't it isn't clear to me you have to dump chat maps all together, which sounds like your present plan, one. Two, if you really do a conceptual thing, just like what would be a good one? Are there sort of many experiments we can do to see which ones work out? Then the programming might be a fair amount better and it might go a lot faster.

Simon
52:34
Yeah, those are all excellent points. There's no doubt going to be plenty of non-IP generating work to do surrounding chat maps, including evaluation. I will say we have been really proactively looking for funds to do exactly the sorts of things you've described, and one of the chief reasons for our FIPC award is actually to study chat maps and to rigorously evaluate the effect of chat maps, if any, on students' general reasoning skills. So that will be one of the objectives of the FIPC award.

Neil
53:11
Why not take some of the learning agency money for that purpose, if only to say that you're not just entirely take a request for one reason and use it for a very different purpose?

Simon
53:23
And I think that's what we'll do. What I actually wrote to the learning agency in my email was it would be immensely helpful if we could allocate some tool funds to operational and scaling costs, not specifying what fraction. I suppose all is technically, logically some. But what they replied to... Grides would not. Grides would not, pragmatically though. But the response that they had was no concerns on our end regarding reallocation and the adjustments to your plan. So we're going to have to meet with them to really nail that out and get an updated agreement. But I do, I expect that some funds will probably remain for that purpose. I go back to Ken's point.

Neil
54:08
So let's suppose they do exactly as you hope. It still leaves Ken's point. when outside critics unfairly attack you, if that were to happen. Why not just have that covered so that you don't have this particular objection? So even if they do exactly as you hope, that still doesn't deal with Ken's point. Just minimize the possible criticisms.

Ken
54:37
But if you have it, if they're willing to restructure and reward the grant, that should take care of the problem. I had something very similar where I had something designed a certain way, got a $60,000 grant, and then COVID hit, and it was just not feasible to do it under the paradigm. I'm a faculty who said, can we do it this way instead? And then we're going to say, whatever you want to do. So I think it's the way you described it, you may be in the same position, we can take care of it, at least for this grant, that issue.

Simon
55:06
I think so. Like I said, we're going to meet with them again, so I'll update the board after we've spoken to them. I will also say, Neil, we have already spent $25,000 in precisely the way we proposed to spend it. So it has been at least partly used.

Nick
55:26
So the grant actually, we asked for $125,000 to develop chat maps and $25,000 to develop this thing we call instructor insights. And these instructor insights are these very detailed and comprehensive reports that are sent to instructors at the conclusion of every Sway assignment. Simon's going to show an example. This actually we built out several months ago right when we got the tools money. This is an example of one of these reports.

Simon
55:55
So we collect feedback from students. This is all voluntary. The distribution of the students' opinions, but they're much more interesting than just what they believe. Why do they believe it? Themes that in this case emerged across nearly 800 students chatting with each other about a range of pretty interesting topics. And we can point out where they discover common ground, where they persistently disagree. If there's pedagogically useful advice we can give to the instructors, can we detect that there is misinformation circulating in the class, bring that to the instructor's attention, and then also generate lessons for the future Sway assignments with the We also provide a completely de-identified mini summary of every single chat thread. In this case, it was a huge class, so there's 372 more of those hidden away. We also present the way students' opinions changed from before to after their discussion. This, by the way, is a very standard finding. The more extreme views, like the strongly disagrees down here, tend to move

inwards and the strongly agrees up here, this is the pre-chat distribution, I apologize for not explaining, they tend to come down. So is that what we see over and over again is an increase in consensus, views tend to get a little more bottled up towards the center. So consensus regularly tightens on Sway, but interestingly, opinions don't generally shift one way or the other on net, although there are some very striking counter examples to that claim. So this is built and in service. We've sent hundreds of these to instructors and have just had amazing feedback from the instructors in terms of how useful this has been for them in their teaching. I am a little bit jealous. Can I go back to that for just one second?

Neil
57:44
Yeah, absolutely. Sorry to interrupt you. That last picture could never quite have used it. Yes. On the left, you have the number in the left, so you strongly agree 3 in pre-chat. But on the right, there doesn't seem to be the post-chat numbers.

Simon
58:04
Yes, no, it just persists across the axis. So it's a little...

Neil
58:09
I don't know how many end up moderately agreeing on post-chat.

Simon
58:13
Yes, well, that would be an easy table to include in. We should defer that discussion until after the blogging. I've never really... I've spent so much time iterating on these figures. I totally welcome any advice on how to get them in better. But yeah, so this is currently already in play. That was completely funded by the learning agency, and they've been really delighted by what we've delivered there. So at least we have that going for us. And yeah, like I said, I will report back on both of these. Well, actually, I don't know that there's going to be anything much to report back on this one, but the learning agency, I will report back once we've had a meeting with them. I see we're nearly out of time, and I do want to respect everyone's time. So if we need to finish up here, then we will, and we can finish our update over email. But if everyone has, I think, another 10 minutes, I'll be able to explain the state of our ongoing dispute with Carnegie Mellon. So is that okay? - That's fine. - Thank you all very much. Okay, so actually before I put the slide on the screen, I'll just say Carnegie Mellon University has been famous as a place where tinkerers go and build things. When I first took my job there, both the dean of the college and the head of the department who recruited me had identified me as a person. I built at that stage another quite popular piece of infrastructure and was like, this is somewhere you can build. And we're not going to take what you build. This was their sort of famous, famous claim. And indeed, that claim is emblazoned in their intellectual property commitments in their

policy as an explicit carve out for what they call courseware. that is software developed for the delivery of educational materials. Now, we built Sway on the assumption that we were working quite firmly within that, and I still firmly believe that we are. However, we spent about a year in sort of just CMU dragging their feet, not answering emails over and over again, until we finally hired an attorney. We deliberately hired someone who was in Pittsburgh and worked for Carnegie Mellon, or worked for a firm that works for Carnegie Mellon and therefore was not legally able to litigate on our part. We thought that would be a very clear signal that we are not trying to be adversarial, but just trying to resolve a disagreement. Unfortunately, this dispute has turned into how to describe it. So the last we heard is two junior people, one in the office of general counsel, a lawyer, and one in the office of technology transfer, have determined that CMU actually claims ownership rights over sway. I will say... Joint ownership. Joint ownership, yeah. Okay. We think that is wildly implausible. And I strongly suspect that we have not yet gotten CMU's sincere view on the matter because they have not yet looked at the evidence. That's a really striking thing about it.

Nick
01:01:27
We spent a lot of time preparing the evidence for them, too. We gave it to our lawyer who gave it to the representatives at CMU.

Simon
01:01:34
And you also mentioned the nature of the evidence, because it's particularly objective.

Nick
01:01:38
Yeah, so our original concern was that CMU was not regarding Sway as educational courseware. But then eventually they stopped dropping that point. It was a great moment. Yeah, they stopped dropping that point. And then they said, well, our understanding is that not only did Nick and Simon develop Sway, but there were a few people affiliated with CMU who contributed creatively to the IP as well. And one such person was our original coder that was brought on who didn't design any of Sway, but just implemented things to our specifications quite incompetently, by the way. Eventually, we got rid of him after a few months. but there's still a small portion of his code in the actual Sway code base. It's all very commodity boilerplate stuff, nothing to do with the design.

Simon
01:02:44
- Like log in, log out, that kind of thing.

Nick
01:02:46
- Yeah, and they saw that as a basis for CMU. Well, that along with, so there was also an intern

who contributed about 18 lines of code to Sway that we actually got rid of two weeks afterwards. They asserted, well, that intern also contributed creatively this way. And as a result, you know, CMU claims joint ownership. And then there's a third person too, who never contributed any lines of code. And we have all the, you know, all the code history in GitHub, which is not possible to edit. The GitHub history is completely immutable. He never contributed any code. He never wrote any GitHub issues. He was only involved in, I mean, it was very helpful. He helped give us our initial funding through CMU, and he helped set up some of the infrastructure that Sway uses. But nonetheless, CMU says, well, he's also a contributor to the IP of Sway. And for that reason, and also neglecting everything we said in our evidence explaining how none of these contributions rise to the level of IP contribution, they ignored all of that that we sent them. But they said because of this, there is CMU contribution to the IP. And for that reason, CMU has joint ownership of the IP.

Simon
01:04:11
This is clearly a somewhat challenging legal issue because it clearly interacts with the intellectual property guarantees that they provided for me as a contract of my employment. So we have given up on our original counsel, and this is another thing that we're currently looking to do. That's kind of what I mentioned earlier about us currently looking for a really good lawyer. Can I... Please.

Simon
01:04:38
Actually, I'd like to hear anyone's...

Neil
01:04:41
Your second dot point. In terms of educational coursework belongs to the CREA in all cases. I think what you're saying is that CMU claims that one of their employees, or these undergraduates or whatever, is one of the creators. And so if they say that, for the outsiders, well, it could have been, then they're not violating CMU IP Policy 361. They're following it, but they have a different interpretation of the history of sway. They may, indeed. That's what it sounds like. I mean, if these guys did it, then they're co-created. And also, you've talked about lives of code, but that isn't... I mean, I may have said something about sway. Yeah, they have made more...

Simon
01:05:30
Neil, Neil, you have contributed more of them.

Neil
01:05:38
Measuring just by the amount of code, which I obviously did none, doesn't count. Say that I'm

not a creator. That's right.

Simon
01:05:49
The evidence goes beyond the GitHub records of all of the code contributions. All of our communication was online, over Discord and over Signal. And again, those are more immutable records. So it's very clear. We also had a discussion with the staff member himself, where he acknowledged his role as being what he described as project management. CMU has no role. That's on the email history.

Neil
01:06:22
That's on a recording. That's on a recording, but not on the email history.

Nick
01:06:28
That's also in the signal history.

Simon
01:06:30
Yeah, there is also messaging history. CMU has not actually looked at any of this evidence.

Nick
01:06:35
We suspect they haven't.

Simon
01:06:37
Well, they almost certainly haven't. Can you get rid of that 0.77%?

Neil
01:06:44
Just get it out of there. Yes. I mean, if it's just a boilerplate, just replace it with a different boilerplate. Would that make a difference? Just why not do it this week? Just get it out of there, because that's just obscure things that you have to talk about. Just eliminate it.

Ken
01:07:02
Yes. Please. I would get some advice, but maybe a good thing to do, I can also see a scenario where they say, wait a minute, you're, you know, this is what you have, you put it out there, it's out of the barn already, changing it now doesn't matter in terms of their legal positions.

Neil
01:07:20
I said, take 10 as a friendly amendment from the floor. Yes.

Ken
01:07:24
Right. I mean, it may be a great idea. I just, you know.

Neil
01:07:27
I don't, you're right. I don't know either. The truth is me.

Ken
01:07:32
The other question, I have a question and a suggestion. The question is, what practical impact does not having the resolution of this mean on what you propose to do going forward? Because from their point of view, if they can delay you, that puts pressure on you. And so they had no incentive. So I presume that it delays certain things, right, to get the rest of the person. So you have an incentive to get this clarified quickly. Very asymmetric, yeah. One suggestion, again, I don't know if they would consider doing it. They might have a conflict of interest, given they're in Pittsburgh. But remember Laura Ellsworth from the Eratic Eight?

Simon
01:08:17
Yeah, yeah.

Ken
01:08:18
She's an attorney at Jones Day. And I can connect you with her. I mean, she may be able to make the case, wait a minute, this is an important thing. You're collaborating, opposing hate. We think it's a very important tool. You know, you were there at their event. And so she might be a good person or somebody in her sphere. And it may well be that the thing to give them is you promise to put on whatever you do on both the nonprofit and some acknowledgment of this was born at Carnegie Mellon with their support and say wonderful things about them in that release situation.

Simon
01:09:01
Yes, we've even gone further than that. We have told them we wish to give them the right to use this without paying for it. And just on the condition that they will agree to a few things. One is that they're not going to create a commercial entity that will compete. And two is that they're not going to release the source code because that would create very significant security issues. This was an agreement we had had with the Dean who was inclined, you know, he told us what he wanted and we just said, check, check, check. We want you to have all of the things you want. Basically what they wanted was the right to do what they want with it internally within their own educational programs. We are completely happy for them to do that. Is that agreement with the Dean? It's in email.

Neil
01:09:51
Communication is in writing. A lot of it is by email.

Nick
01:09:54
Yeah.

Neil
01:09:55
So you could actually go back and say, oh, here's the agreement that Simon had with the dean, and dean, it's obvious, might I suggest that you make sure that what you think is there actually is there?

Simon
01:10:08
Yeah. Nick has done a very thorough accounting of all.

Neil
01:10:12
So you could, for our next meeting, you could actually show, here's the agreement we had with the dean.

Simon
01:10:17
Yes, informal agreement is one way you could phrase it. I think the key thing here is we definitely need good legal counsel. So, Tim, that introduction would be very welcome. Thank you.

Ken
01:10:34
And we also have a second problem, right? I mean, your point is that you want to get this resolved quickly. The question is who, you know, has ownership rights over the technology, but I think you also have a contract right in terms of when you sign on. So you may need an employment lawyer too. So talk to Laura. I'll connect you with Laura after we get off and have those conversations with her. And if you need to move back to me on that, I'm happy to talk to you more about that. Thank you. That would be really great.

Nick
01:11:07
I just want to say something interesting and kind of amusing is, so when I became a postdoc at CMU, they never actually gave me any visitor agreement to sign. And so technically I never signed any visitor agreements. So technically the CMU IP policy doesn't apply to me. So in our last meeting with the lawyer, he said, "Oh, by the way, Nick, CMU doesn't care about your contributions because you never signed the visitor agreement." So, I mean, I was, yeah, I was a

little puzzled early on why they never sent me anything to sign, but okay. I just figured, I guess I didn't have to sign anything. - Really glad we didn't follow up about that.

Simon
01:11:48
Okay, I'd love to say a little more about the impact that we're having, but I think perhaps the best way to do that is to share with you two pages of our website.

Nick
01:12:01
- I just wanna check, are we all good until the half hour point to keep talking? Okay, perfect.

Simon
01:12:09
- Okay, Bob, still there? - Yep. - Okay, great. So these are two of my proudest, proudest pages on this website I think Nick's with me on this these are feedbacks that are sent to us from students I think they're just fascinating and sorts of things that emerge over it one of them that has been really changed the way I thought about these things when Nick and I were first thinking about SWOAD we were really thinking that we were going to work towards voice-in voice-out models so is that we could kind of like a presidential debate two people could talk and you pause the microphone for one um but then we started to get this kind of feedback from students about how much they appreciated the fact that it was text-based and they reliably cite these couple of things one is you don't have to respond immediately what a what a blessing if you're talking about something complex or something that might trigger emotions um they often say like explicitly in their feedback in class if i get called on to answer All I can do is turn to my emotions. Here I actually have time to reflect. And then they have time to also, after gathering their thoughts, think about how to express them. So we just get this feedback over and over again. And since this message has landed, I've been evangelizing for texting as much as I can. It's funny how we kind of think of it as this pale and anemic substitute for the real thing and face-to-face. Obviously, face-to-face communication is really important. but I've come to think texting us as well. This feedback is something I would love it if everyone would have to take a look at. We get truly amazing stuff. Students like, I have horrible ADHD and can connect off-topic comments that keep me on track. A lot of students who say, I've always been too nervous to speak up in class, but here I actually get to share my views. A lot of students talk about the confidence that they're gaining from these experiences. So I would just love it if you could spend a couple of minutes browsing this. When I get depressed, I open this page, and it's amazing. The other really page that I'm just extremely proud of is these feedbacks from instructors. We've recently started doing interviews with instructors who have used Sway, and it was just incredibly moving to hear from them with this kind of summative assessment of what our work has meant to them and their students. It's really extraordinary, the stuff that they say about what it's allowed them to do in the classroom. And I just love it if you take, I think it takes probably 15 minutes to read this whole page, and it's just really, really beautiful stuff. Diana

Mutz's comments are especially wonderful and encouraging you. And Heterodox Academy has kindly donated some of their editorial resources, who are currently cutting up short videos for us from these interviews. So you'll be able to click onto one of the instructors and get a two-minute version of our interview with them. So this is a really great way to sort of get a sense of our impact. The other is through these student chats. Now, of course, these are highly, highly cherry-picked. We've run thousands and thousands of discussions and these are literally my six favorite. So, you know, I think they're... Seven. Yeah. Seven favorite. Seven. Oh yeah, seven. I just added one. That's right. So, but these do give you a view into... It's funny, the range of desiderata for publishing one of these on the website is, there's just so many things that you have to think about before putting it into the public. least of which did both of the students volunteer uh for reach of participating research actually some of my favorite chats we can't publish because both students or perhaps nine students um volunteer but these are all from students who have provided permission um so you can see oh by the way about

Nick
01:16:16
75 percent of students opt in to um to share their their conversation data for for this sort of

Simon
01:16:22
research. That's right. And if you prefer, you can welcome everyone. Our topic is hormones and sports. So we'll be discussing this statement. Transgender women went through male puberty, but who had used hormone therapy for it. So you can check that out. I enjoy listening to them sort of reenacted by AI. You'll see at the end, the understanding quizzes. So these are generated for every student immediately after the chat, asking you about your partner's reasoning as a measure of engagement. Did you follow the sort of layers of argumentation? So it'll ask you questions like, you argued so-and-so. Your partner, what was your partner's objection? Things like this are very, very common questions. I'm happy to say the modal score is four out of five. And that's not because they're easy. I actually, every time I read a transcript, I try and do the understanding quiz. And I don't know if my modal score is four out of five. So, and then finally, you get to see how their opinions changed. and their responses to a range of survey questions that we sample. So obviously these are selected. They're very, very strong responses, but they're actually not that cherry-picked. If you look at the student data page, and don't worry, I'm going to send you links. These links are after we finish. You'll see aggregated statistics. These have not been updated in a little while. But this is over chats of over 77 institutions on all manner of potentially very toxic stuff. And nevertheless, we see nearly 80% of students come out saying it was good or awesome. Overwhelmingly, I mean, self-censorship is just not an issue. Compare this to the national data that we get from the Foundation of Individual Rights and Expressions Campus Survey. This is the inverse. It's extraordinary how comfortable students are. And this one is one of my favorites. It's not just like taking their medicine. They really recognize that this is valuable and it's fun. So you can check this out and

then judge for yourself how Cherry Peaks exactly those transcripts are. The final thing I'll send you a link to, it's a little bit of an overwhelming thing, so I probably won't emphasize it too much, but this collection of 35 reports, if you want to know what Sway does behind the scenes, I already went through one of these, you can see how the instructors are using it, what topics they're assigning, and how the students are reacting at a pretty fine level of grain. Are these 35 cherry-picked, or these are all instructors? These are much, much less cherry-picked. They're mainly selected because they're decent scale. The standards have been really high. This is going down super well. 35 out of 40 here? No, no, 35 out of hundreds, but many of them are simply too small. Many of them are simply too small to go up here. They only had eight students, things like that. But you know-- - By the way, Bar, Bar, I just wanna say,

Nick
01:19:19
I know we have a long overdue update for you on Sway in the Think Freely, sorry, Speak Freely Think Critography course on Coursera. So we'll give you some updates soon about that. I know this sort of data will be very interesting to you.

Barb
01:19:37
um you know i i just so i'll be interested to see that i i i just this could be a topic from the next meeting or something but i'm very curious if people just going and getting responses from chat gpt and pasting them in and sometimes way of remote responses that are clearly not thought out at all if that's a problem and you know if you're addressing it we can deal with that next time and then i had to i i had to paste in um i don't know if you guys have ever watched he and i love team kill and the the one where they misinterpret the one guy is saying something with a certain meaning and then the other guy on the other side is reading it with a completely and you know he ends up coming with a baseball bat. It's the funniest thing but I don't know.

Simon
01:20:35
It's in the Zoom chat. Oh awesome. So that was an issue that we saw early on actually and it was very very obvious when students were pacing from ChattoVT. So we've taken a number of steps to try and eliminate that which have been really successful and the primary one is using JavaScript to simply disable copy paste. It's a very blunt instrument. You know, there are things that we would like them to be able to copy paste, but it has meant that that behavior is no longer detectable. I've recently been using GPT-0, which is a pretty good AI detector, at least when I use it on things where I know what the truth is. It classifies things or provides a probability of being all AI, all human, or a mix, and sway the student feedback, the student chats are reliably classified as 100% human. And indeed, just reading them, it's really clear that they are. So we haven't seen that yet. Now, by the way, just that little JavaScript fix, technically savvy students could find a way around it. We would have ways to fight back, but for now, they haven't. So for now, we haven't seen that. Of course, one thing they could do is do chat GPT

and then type whatever chat GPT says.

Nick
01:21:51
At that point, you might as well just have the conversation. Exactly.

Simon
01:21:58
So that issue has basically... One of the reasons actually instructors have said to us that we're using Zwei is because they were like, I've never been in such a terrible position in my career. I'm about to give up. All I get is AI stuff. One instructor who's actually featured on the feedback on the website, He thought, if I could get the students to really care about the topic, then maybe they would stop plagiarizing from ChanchiBT. So he started to use Sway. And he told this amazing story. He's like, the students were so worked up and riled up by what their partner said. One of them was complaining, like, Guide said there's no coherent principle behind my judgment. Well, Guide is wrong. He said they would write this whole essay about why Guide is wrong. So he said, yeah, the final essays were totally transformed when the students really had some skin in the game. And I think that's such a good lesson. So, yeah, we'll keep monitoring. But for now, I'm really pleased to say that.

Nick
01:22:58
And, you know, I'm sure some students will get around it when we really massively scale. Like, who knows, maybe there's a 0.001% chance, but then we have thousands and thousands of students using Sway. I'm sure some of them will find a way around it. their desire to cheat is that strong.

Neil
01:23:16
Yeah. I see how they're actually cheating if they were to do this. It'd just be a loss. I mean, they're not gaining. Are they gaining anything by doing this? Or is it just to irritate you guys? They do get credit.

Simon
01:23:28
Many of them get credit from their teacher assignment.

Neil
01:23:31
The quality of the... They actually get credit.

Simon
01:23:34
No, just usually on completion of the assignment.

Neil
01:23:38
If they could just put in any stupid thing and they'd get completion.

Simon
01:23:42
- Well, not quite, but let's talk about that outside of this board meeting. So unless there were other issues that the board wants to address as a whole group, I think we can adjourn this.

Nick
01:23:55
- Well, if we have another, I mean, if we could still go for another five minutes. - Oh, okay. - Yeah, Simon, do you wanna share those slides again? 'Cause I just wanted to say a little bit about our finances and if you have the... - Oh yeah, absolutely. - I think it's the, is it the next? Yeah, I just wanted to talk about our revenue and sources of funds. We mentioned AVDF before and HXA, your fiscal sponsor. We were also able to get grants from two Snyder Foundations. Craig Snyder and Lindy Snyder actually originally just applied to the Craig Snyder Foundation, but it turned out that his sister, Lindy, was so interested in this way that she also wanted to fund the project. So we got an extra $25,000 from that. We've actually used up the Lindy Snyder funds. Most of the Craig Snyder funds are actually going towards my salary over the next few months. We also got a grant from HXA. So HXA is focused on higher education, but they actually did have some grant funds specifically for high school stuff that's in the vicinity of HXA's mission of promoting viewpoint diversity, constructive disagreement, and open inquiry. And we got a contribution of about $13,000 for the early Sway Classroom initiative. Bendilo Foundation. So Bendilo, we were connected to from Christina Koppel, who Baruch knows and who actually is our founding senior advisor. So we're building out an advisory board as well. that's still in process we're still in the process of figuring out who's going to be on that but Christina connected us to Bendilo and we got some money from Bendilo and also you see the tools competition money there we have some applications as Simon said we have some iron the fire so there are a few here one is ECI I forgot what ECI stands for

Simon
01:26:02
Educating Character Initiative out of Wake Forest

Nick
01:26:05
Yeah, so we put that application in, $230-some-thousand. This New Schools Venture Fund, that's over there. That's actually for a Sway classroom. And unclear exactly how much that would be, but they said it's going to be between $100,000 and $200,000. But again, we're not going to get a decision on that until May or June, I believe. And we also submitted a request for ideas to the Templeton World Charity Foundation. And this is really blue sky vision stuff. So in our request for ideas, we propose building out a real research center to study the science of

arguing better and of disagreeing wisely. And so we want to really build our organization because, as you know, right now it's mainly me and Simon. And we brought on a director of communications recently as well. And we have a couple of developers who, you know, eventually will not be paid through DisagreeWisely, but will be paid through the new entity. But we want to have more. That's another part. Yes. AI coding has gotten, it's so much better now than it was a year ago. And a year ago, it was so much better than it was two years ago. And, yeah. But we want to bring more scientists onto our team, more researchers, more people to handle engagement, partnerships. So, yeah, this is going to be at least $5 million we'll ask for if we get invited for the full application. Yeah, we also talked about FIPC, $800,000 over the next four years. Hopefully we'll get some $60,000 this year and then more in the subsequent years. Let me say a little bit about compensation. So actually, okay, so I mentioned my salary is coming from the Craig Snyder Foundation, but I'm actually, okay, so part of the ABDF grant included my salary for a few months, or maybe it was six months, something like that. And separately, we got the Snyder Foundation grant, And we're actually transferring some of that to HXA so that I can stay on HXA's payroll. And so disagree-wise, they won't directly pay me, but HXA will. And Simon is currently being paid by HXA, and so is our direct, well, very soon our director of communications, who needs some back pay. But just to clarify, as board members, we're not compensated. None of us will be compensated for our role in the board. But Simon and I also have separate roles. Simon's the CEO. I'm also the CTOO, Chief Technology and Operations Officer. I've also unofficially been the CFO. But it's these non-board-related roles that we are compliantly allowed to be compensated for. And, yeah, so what have we used our money for in the last several months of existence? Well, a lot of it has been for just for infrastructure, for deployment, server costs for hosting Sway, AI costs, also paying salaries. There's a ton of additional vendors that we use for Sway, so with email, with text messages for monitoring errors. So it's a big operation, but most of the revenue has gone towards salary and infrastructure costs thus far.

Simon
01:29:56
And to give the board a sense of the kind of overall scale, to pay, to keep the pace of development at what it has been, and to pay our core team, we probably expect it will be about $40,000 a month, although we all take pay cuts and do it for $30,000. But that's what we're aiming to sort of raise, is in that $40,000 to $45,000 a month's spend. So it's pretty expensive to run. But I really wanted to end on a much more optimistic note, if I could. So one of the collaborations that I've been incredibly excited about is with Ahmed Al-Khatiq. He is a prophet, I don't know, an extraordinary man. He's a Gazan who is the head of a group called Realign for Palestine, which lives within the Atlantic Council. Ken, I'm sure you know his work. He calls it radical pragmatism. And with him, we're hoping to actually finally get to do some real work on helping to elevate the quality of discourse surrounding the conflict in Israel. This is something which has been deeply important to me, but it's a third rail that instructors won't touch. Even

the instructors who are happy to assign chats on race and policing and gender treatment for children. Understandably, because of the federal government here, they are really scared about touching Israel-Palestine. So we're really hoping to have a big impact and elevate the work that Realign for Palestine is doing. I think they're amazing. If you don't know Ahmed's work, I really encourage you to check it out. I'm going to include a link. But this is one of the things I'm just sort of most hopeful for about our work, both in America and then hopefully also in the Middle East. I don't quite understand what you're doing with Ahmed Yeah, understandably so we've got a couple of, the most immediate plan is we're going to be helping him with his event so he's constantly travelling around the country and he goes and gives these amazing talks and then everyone goes home and they never think about it again we're going to change that so that he gives these amazing talks elicits people's opinions and then they continue to have discussions asynchronously over the next week we think this is going to give him some really important insights into which arguments are landing which objections are stopping people in their tracks correlatively which are falling flat and then the second is we're planning an integration with this website itself so he does a lot of work on campuses and if you browse the site for a little while you'll see these videos where students are asked questions and then Ahmed answers them so we're planning to integrate sway chats on each of these topics so students will watch the video and then they'll be able to talk to someone who disagrees with them about whatever attitude they formed in response to that video so this is um ahmed is really excited to make this a kind of permanent home uh for for sway

Neil
01:33:06
uh so i'm really uh just can't wait if i was looking at the outside uh i would say well there's a pro-palestinian guy and he's not very good and impressive but there isn't an analogous pro-Israeli guy to do to set up so you don't actually it sounds so far that you're not satisfying the sway thing actually have people disappear you say the people who show up and well i can tell you who they are they're pro-palestinian well actually is is uh he's a really

Simon
01:33:38
controversial figure in the pro-palestine movement uh because i personally just from now having talked to him a bit. My sense is that he doesn't actually care that much about Israel. He wants to focus on Gaza, his home. But he is a very, very controversial figure. I don't believe the people in the sort of mainstream so-called pro-Palestine movement regard him as pro-Palestine. I think he's often slandered as a secret Zionist. Very unfairly, this is a man who's had 35 of his family members die in the conflict since 2023, and yet he's derided and caused all sorts of really bad news.

Neil
01:34:19
That doesn't quite answer my concern. My concern is you don't have a pro-Zionist group, or

analogous thing.

Simon
01:34:25
He might be the pro-Zionist.

Neil
01:34:29
He would not be regarded by the pro-Zionist. Is there a pro-Zionist group, analogous, that you could actually have? because I would come closer to what your goal is, because it's still within, you know, I don't know this guy, obviously, at all, but I know that he's good. But you don't have the range of positions that you have if you have a genuinely pro, Yahweh gave us this lamb type of guy.

Simon
01:34:56
That is not his view, that's true.

Neil
01:34:58
No, no, no, okay. But that's what I would think something like swaying would expect, or at least something like that you're recruiting from.

Simon
01:35:07
I have had a number of meetings with community organizers, rabbis, including one that Ken introduced us to. We are actively looking for partners, both not just in the controversial kind of space in which Ahmed exists, but also just the sort of mainline campus pro-Palestine stuff, as well as mainline Zionist organizations. And I'm looking for them, and I'm really, really keen to make what you just said absolutely true and obvious to the world. Could you have a debate like that? We've got to start somewhere.

Neil
01:35:41
Then the people showing up would actually have the clash of views. They'll have a clash of views. His audiences will have a real... Except the outside observer doesn't know that.

Nick
01:35:53
That's true.

Neil
01:35:54
It looks like a PR piece for the Pope of the Palestinian, or might look like to some people, and that would be bad for you. in many ways.

Nick
01:36:02
Yeah, so Neil, that's a great point. And I do want us to soon have an additional meeting just to talk about strategy in general. But one thing that Simon and I have talked, and we've also talked, Neil as well, is our partners, our partnerships, we would like to have from the outside view as on net nonpartisan. So some of the funding sources, for example, are more right-leaning, like ABDF, as Simon mentioned, is more right-leaning. Learning Agency strikes us as more left-leaning. Way more left-leaning. Way more left-leaning. And so that's in terms of funding sources. But across the board, though, in terms of funding sources and partnerships, we would like to have a mix on both sides so that we're not perceived as partisan one way or the other. And so that's just a general strategic point that we want to implement moving forward. And I see this as, Neil, what you're describing as an instance of this more general strategy.

Neil
01:37:05
I like that thing. Let me just give you a thing. My worry is that you know so much about this person. He's so good that you don't see, you may have lost track of how it looks like from the outside. Just if I looked at that website, I would say, oh, this is an anti-Israeli.

Simon
01:37:23
I'm really curious to hear what Ken's take on this. Because we have like a world expert on anti-Semitism.

Ken
01:37:30
I haven't looked at the website, but anybody who's Palestinian that's willing to engage across the divide is going to be seen by a lot of people in the pro-Palestinian movement as violating the idea of anti-normalization. So, you know, they're going to, I think you're right, Simon, they're going to be seen as, you know, sort of like too cozy with Zionists for a lot of folks. And on the pro-Israel side, you know, There are groups who might be open to this, but there are going to be ones that will be flags for others to say, ah, you're going down to those folks who are trying to suppress speech, you know, like staying with us, and some of the others have the IRS, the whole other discussion of which side people are, the groups that are supporting IRS are trying to stop that type of speech. So, you know, we could have a longer discussion about it, but it is, as you know, a hard instance.

Simon
01:38:19
I would really like, appreciate having that longer discussion. Obviously, it's a political minefield for us as an organization. But at the same time, we went public with our very first demo being a discussion on Israel-Palestine. And Ken, as you know, we've caught some trouble for that. But I

think we've also earned a lot of respect for it.

Ken
01:38:40
And there are people who are not using the technology and the types of things that you're doing, but are dedicated to talking across the divide. I don't remember if I sent you Mira Sukharov and Omar Dojani but they've been going around campuses and Mira is certainly to the left and Dojani is probably getting beaten up for talking to a Zionist too but at least they're discussing significantly some of the differences and why people perceive them differently and there may be people like there to think about too

Simon
01:39:13
That would be actually a really cool introduction I would love that I just saw the time again I do want to be respectful of everyone's time. I think we've got a follow-up discussion to have with each of you individually. But for now, I think we can adjourn this meeting. Nick, did you have anything you wanted to say at the end or anyone else have any final?

Nick
01:39:36
Oh, there was one other positive thing I wanted to end with. This will just take a couple of minutes if that's okay. So we're also actively in talks with some pretty high up members of administrations of several universities to incorporate sway, not just at the individual classroom level, which has been the majority, like almost all the use cases of sway have thus far been an instructor setting up sway activities for their students. And in some cases, well, some events, we've done this with other organizations, but we haven't yet had a larger scale deployment of sway at a university or in a university program. But we're, so I'll just tell you the universities we're in talks with. So University of Michigan is very interested in using Sway as part of their orientation module that, well, originally it was going to be that was going to be optional for the incoming students, but now they're thinking they might actually make it required for all students, and that would be 8,000 students in orientation doing a Sway module where prior to coming to campus, they're connected with an incoming student who disagrees with them about some issue of political interest or moral interest or personal interest. And that's a great way to introduce them to the culture of, I mean, the ideal culture of a liberal arts institution that has a free exchange of ideas where you're having a constructive discussion with someone you disagree with, perhaps vehemently. So that's really exciting. We're in talks with them. Another one, SUNY. The whole SUNY, well, not the entire SUNY system, But we talked about potentially doing a pilot with a few campuses in the SUNY system, which overall has 200,000 students or something across all the different campuses. But if we just did a pilot with them for, you know, with 10,000 students, that would also be huge. And they've been very interested and we've been communicating with them. Columbia is another one, Columbia University. So they actually reached out to us because they need to do something. They need to do something. They

reached out to several different organizations and basically invited us to give a pitch to them. And we gave them our pitch a couple of weeks ago. We nailed it. We nailed it. In fact, there were more people than expected. They were all, I mean, quite enthusiastic. It really went extremely well. And they said that they can't really tell us more. They have to write up a report. but in the call everyone was very enthusiastic.

Simon
01:42:09
And if I can add another, Mike Sipser met with Peter Bonilla at MIT and they're talking about potentially having sway chats between students before they arrive on campus, which I think is a great time when they're sort of raring to go and just to meet another student. So that's just four of them.

Nick
01:42:30
And the other main one is CUNY. So we had multiple talks with them and they were very interested, although I got the sense with them it's more tentative. The others, so certainly Michigan, I think Michigan's probably the most promising of them, although maybe it might be tied with SUNY. They both were very excited. Columbia, they seemed very excited when we met with them, but we're just waiting to hear back from them. And CUNY, they kind of, I mean, we talked with them earlier than the other groups, and they haven't been as responsive, but that's just another potential thing in the pipeline.

Ken
01:43:09
If I could help, Nick. Go ahead. I was just going to say if I could be helpful with any of that. I mean, I spoke at Michigan at the Rallon, Wallenberg. I mean, I was talking to them about sway and passing. Those folks there are really good. You know, it jives with what they're trying to do. CUNY, off the record, I'm sort of friends with the chancellor. He was in a tough political position. And his assistants, they're just sort of overwhelmed and stuff. Oh, right. You connected us. I sent him, you know. Right, right. Yeah. And, you know, Columbia, I don't know, Claire Shipman. ended up at that meeting, probably not. She's the outgoing president. I also mentioned that to her, too. So, you know, my endorsement may be the kiss of death with some of these places, given that they're real issue, but I sort of think not. But if there's a way I could be helpful with those, that would be great. And SUNY, you know, there are particular schools. I've spoken at some, and I know some of the administrators and some of them, not others, but I'm happy

Simon
01:44:21
be helpful if I can. Yeah, all those introductions will be welcoming. Great. As Nick mentioned, the reason we have had any contact with Cooney is up already, thanks to you. And Bob,

Oakland, if they're looking for some more student discourse, you know, we'd love to chat to anyone.

Barb
01:44:39
They're planning a sort of a conference with the great little Kiana this time. So, Bob, I can put you in contact with the person who is, you know, kind of spearheading all of that. They're very interested in, you know, social discourse and improving social discourse.

Simon
01:44:58
I would love it if I could attend and actually see you in person.

Barb
01:45:05
If you happen to be there. Yes. Let me out right to the person who is handling all that. and I can see if I can get you all put together.

Nick
01:45:18
And Neil has voiced extreme skepticism about this, so this might be an actual positive point to end on.

Neil
01:45:25
Well, I don't know. It's conducive skepticism and that the difference between an involuntary and an opt-into thing is tremendous. Absolutely. The opt-into is much more likely to succeed, I think, And so that it's certainly the first round, maybe the first two or three rounds, so my claim is, should be voluntary. And then if they work, you will find problems they will never imagine with the voluntary, get those out of the way before you go to the mandatory.

Simon
01:46:00
Okay, everyone. I am fading very rapidly. Thank you so much. I really appreciate it.

Simon
01:46:06
We're going to follow up with an email today or tomorrow. So thank you all. And talk to you soon. Talk soon. Take care. Bye. Take care.